

FORM 'B'
[See rule 3(3)]

**DECLARATION, SUPPORTED BY AN AFFIDAVIT, WHICH SHALL BE SIGNED
BY THE PROMOTER OR ANY PERSON AUTHORIZED BY THE PROMOTER**

Affidavit cum Declaration

Affidavit cum Declaration of Mr. **HS Kandhari** duly authorized by the promoter of the proposed project, vide its/his/their authorization dated 23rd JUNE 2017.

I, duly authorized by the promoter of the proposed project do hereby solemnly declare, undertake and state as under:

1. That promoter has a legal title to the land on which the development of the project is proposed

AND

A legally valid authentication of title of such land along with an authenticated copy of the agreement between such owner and promoter for development of the real estate project has been submitted as **Annexure G** of the application.

2. ~~That the said land is free from all encumbrances.~~

OR

That details of encumbrances mentioned in including details of any rights, title, interest or name of any party in or over such land, along with details has been submitted as **annexure H** of the application

3. That the time period within which the project **WAVE ESTATE - COMMERCIAL POCKET- B** shall be completed by promoter is DEC-2021



4. That seventy per cent of the amounts realised by me/promoter for the real estate project from the allottees, from time to time, shall be deposited in a separate account to be maintained in a scheduled bank to cover the cost of construction and the land cost and shall be used only for that purpose.
5. That the amounts from the separate account, to cover the cost of the project, shall be withdrawn in proportion to the percentage of completion of the project.
6. That the amounts from the separate account shall be withdrawn after it is certified by an engineer, an architect and a chartered accountant in practice that the withdrawal is in proportion to the percentage of completion of the project.

7. That promoter shall get the accounts audited within six months after the end of every financial year by a chartered accountant in practice, and shall produce a statement of accounts duly certified and signed by such chartered accountant and it shall be verified during the audit that the amounts collected for a particular project have been utilised for the project and the withdrawal has been in compliance with the proportion to the percentage of completion of the project.
8. That promoter shall take all the pending approvals on time, from the competent authorities.
9. That promoter has furnished such other documents as have been prescribed by the rules and regulations made under the Act.
10. That promoter shall not discriminate against any allottee at the time of allotment of any apartment, plot or building, as the case may be, on any grounds.

HARMANDEE
P SINGH
KANDHARI

Digitally signed by HARMANDEEP SINGH
KANDHARI
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st=UTTAR PRADESH,
serialNumber=d294cd509237c68fdd5bc7a
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KANDHARI
Date: 2018.03.27 17:08:18 +05'30'

Deponent

Verification

The contents of my above Affidavit cum Declaration are true and correct and nothing material has been concealed by me therefrom.

Dated: 26-03-2018

Verified by me at Noida on this 26th day of March 2018

HARMANDE
EP SINGH
KANDHARI

Digitally signed by HARMANDEEP SINGH
KANDHARI
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serialNumber=d294cd509237c68fdd5bc7
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KANDHARI
Date: 2018.03.27 17:08:55 +05'30'

Deponent